

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/05/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0007352

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CHARLES NORMAN

vs.

DEFENDANT: EDWARD PAGE
ALLINSON, ET AL

NATURE OF PROCEEDINGS: MOTION – DISCOVERY – DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff Charles Normal filed a motion to compel further responses to discovery related to Requests for Production of Documents, Form Interrogatories, Requests for Admission, and Special Interrogatories. On June 22, 2026, Michael Lopez was appointed as the Discovery Facilitator to preside over this dispute. The parties have had adequate time to meet with the Facilitator.

Pursuant to local rule MCR 2.13, the parties were required file a Declaration of Non-Resolution if the matter did not resolve. No Declaration was filed and therefore, the court shall take the matter off calendar. Either party may place the matter back on calendar by filing a Declaration of Non-Resolution in compliance with local rule MCR 2.13, and by appearing ex parte to reschedule the hearing.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/05/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008950

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: EVAN QUADJOVIE	
vs.	
DEFENDANT: SAN FRANCISCO BAY AUTOS LLC, ET AL	

NATURE OF PROCEEDINGS: 1) MOTION – STRIKE
2) DEMURRER

RULING

Defendant American Contractors Indemnity Company’s (“Defendant”) Demurrer to the First, Third and Fourth Causes of Action in plaintiff Evan Quadjovie’s (“Plaintiff”) Complaint is SUSTAINED with leave to amend.

Defendant’s Motion to Strike is GRANTED with leave to amend.

LEGAL STANDARD – DEMURRER

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The onus is on the plaintiff to articulate the “specifi[c] ways” to cure the identified defect, and absent such an articulation, a trial or appellate court may